

# Special Notice

**SUBJECT\*** Muse and CardioDay Support Service Sole Source Notice

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## GENERAL INFORMATION

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|---------------------------------------|--------------------------------------------------------------------------------------------------------------------------|
| <b>CONTRACTING OFFICE'S ZIP CODE*</b> | 78240                                                                                                                    |
| <b>SOLICITATION NUMBER*</b>           | 36C25725Q0208                                                                                                            |
| <b>RESPONSE DATE/TIME/ZONE</b>        | 03-14-2025 10:00AM CENTRAL TIME, CHICAGO, USA                                                                            |
| <b>ARCHIVE</b>                        | 30 DAYS AFTER THE RESPONSE DATE                                                                                          |
| <b>RECOVERY ACT FUNDS</b>             | N                                                                                                                        |
| <b>PRODUCT SERVICE CODE*</b>          | J065                                                                                                                     |
| <b>NAICS CODE*</b>                    | 811210                                                                                                                   |
| <b>CONTRACTING OFFICE ADDRESS</b>     | Department Of Veterans Affairs<br>Network Contracting Office 17<br>5441 Babcock Road<br>Ste. 302<br>San Antonio TX 78240 |
| <b>POINT OF CONTACT*</b>              | Contract Specialist<br>Anitra Carter<br>anitra.carter@va.gov                                                             |

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## ADDITIONAL INFORMATION

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**AGENCY'S URL**  
**URL DESCRIPTION**  
**AGENCY CONTACT'S EMAIL ADDRESS**  
**EMAIL DESCRIPTION**

**\*= Required Field**

**Special Notice**

# Special Notice

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## DESCRIPTION

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The Department of Veterans Affairs (VA), Network Contracting Office (NCO) 17, is issuing this Notice of Intent (NOI) to inform industry contractors of the Government's intent to execute a Sole Source Award under FAR Part 13 – Simplified Acquisition Procedures, specifically FAR 13.106-1(b).

The intended Contractor is GE Precision Healthcare, LLC, a Large business, located at 3000 North Grandview Boulevard., Waukesha, WI 53188-1615.

The West Texas VA Health Care System (WTVAHCS) located at 300 W. Veterans Blvd, Big Spring, TX 79720 requires comprehensive maintenance and repair services to include hardware /software support services, software upgrades and annual preventive maintenance/calibration coverage for the GE Health Care CASE V6.7 Serial Number STE23140014SA, MUSE NX, and Cardio Day System located in the West Texas VA Health Care System that is identified in the Statement of Work. The Contractor shall provide planned maintenance for the hardware in accordance with GE Healthcare and OEM recommended frequencies and hardware specifications as set forth in the GE Healthcare service manuals during the hours of 8:00am-4:30pm CT Monday-Friday.

The North American Industry Classification System (NAICS) Code for this requirement is 811210 Electronic and Precision Equipment Repair and Maintenance and the Small Business Administration (SBA) Size Standard for this sector is \$34.0M.

THIS NOTICE OF INTENT IS NOT A REQUEST FOR COMPETITIVE QUOTES. No solicitation document is available and telephone requests will not be honored. No award will be made on the basis of unsolicited quotations or offers received in response to this notice. Any response to this notice must show clear, compelling, and convincing evidence that competition will be advantageous to the Government. Information received in response to this notice must clearly demonstrate the capability of meeting the Government's need as stated above. The intent of this synopsis is for informational purposes only. Information received will normally be considered solely for the purpose of determining whether to conduct a competitive procurement.

All inquiries and concerns must be addressed in writing via e-mail to **Anitra Carter** at [anitra.carter@va.gov](mailto:anitra.carter@va.gov) with the following information referenced in the subject line, **36C25725Q0208 – Muse and CardioDay Support Service** no later than 10:00 AM Central Standard Time, Friday, March 14, 2025.

A determination not to compete this requirement, based upon responses to this notice, is solely within the discretion of the Government. The Government is not responsible for any potential costs incurred from interested parties desiring to respond to this notice. The interested parties bear full responsibility for ensuring complete transmission and timely receipt.

## **STATEMENT OF WORK (SOW)**

### **I. GENERAL:**

The Department of Veterans Affairs, West Texas VA Health Care System (WTVAHCS), requires comprehensive maintenance and repair services to include hardware /software support services, software upgrades and annual preventive maintenance/calibration coverage for the GE Health Care equipment listed in section titled "Equipment List". The CardioDay Holter system is required to work seamlessly with GE Healthcare MUSE NX, VISTA, and GE Healthcare SEER Light Holter recorders. Server software must be server Win 2019. Service and Software agreement will cover software errors, technical support and clinical applications support, software updates, and remote diagnostics services. The place of performance will be VA Medical Center Big Spring Texas, 300 W. Veterans Blvd, Big Spring, TX 79720. The period of performance will be one (1) Base year with a start date on or about May 6, 2025 through May 5, 2026 plus 4 option years.

### **II. DEFINITIONS/ACRONYMS:**

- A. Biomedical Engineer - Supervisor or designee.
- B. CO - Contracting Officer
- C. COR - Contracting Officer's Representative
- D. PM - Preventive Maintenance Inspection. Services which are periodic in nature and are required to maintain the equipment in such condition that it may be operated in accordance with its intended design and functional capacity with minimal incidence of malfunction or inoperative conditions.
- E. FSE - Field Service Engineer. A person who is authorized by the contractor to perform maintenance (corrective and/or preventive) services on the WTVAHCS premises.
- F. ESR - Vendor Engineering Service Report. A documentation of the services rendered for each incidence of work performance under the terms and conditions of the contract.
- G. Acceptance Signature - VA employee who is authorized to sign-off on the ESR which indicates that the Emergency Repair has been accomplished or in a pending status.
- H. Authorization Signature – COR's signature; indicates acceptance of work status as stated in ESR.
- I. OEM – Original Equipment Manufacturer
- J. VA - Department of Veterans Affairs
- K. WTVAHCS – West Texas VA Health Care System

### **III. CONFORMANCE STANDARDS:**

- A. Contractor shall ensure that the equipment functions in conformance with the latest published edition of the applicable standards, such as: NFPA-99, UL, OSHA, JCAHO, VA, etc. and the "Manufacturer's Performance Standards/ specifications" as used when the equipment was originally procured and that any upgrades/updates will meet or exceed the stated standards/specifications.
- B. Contractor must comply with the Privacy Act of 1974 and the agency rules and regulations issued under the Act.

- C. Contractor must comply with Health Insurance Portability and Accountability Act of 1996 (HIPAA) and the agency rules and regulations issued under the Act surrounding access, protection and confidentiality of personal health information and individually identifiable information.
- D. The Certification and Accreditation (C&A) requirements do not apply and a Security Accreditation Package is not required.

#### **IV. HOURS OF COVERAGE:**

- A. Vendor will provide technical telephone support 24 hours a day, 7 days a week. Vendor will provide a reasonable amount of clinical applications support, Monday – Friday, 8:00AM to 4:30PM CST, excluding Federal holidays, by telephone in response to inquiries. Vendor will make reasonable efforts to respond by telephone to a report of an error or malfunction within one hour after notification by Customer, and provide on-site support within twenty-four hours, during covered days, of notification by Customer.
- B. Vendor will provide planned maintenance for the hardware in accordance with GE Healthcare and OEM recommended frequencies and hardware specifications as set forth in the GE Healthcare service manuals. All inspections will be scheduled at a mutually agreeable time between Mondays - Fridays, 8:00AM-4:30PM local site time.
- C. COR or designated alternate shall provide reasonable access to the equipment, reasonable working space, and a reasonable safe, hazard-free operating environment for contractor's employees and representatives providing services hereunder during hours of coverage.
- D. Federal Holidays observed by the WTVAHCS are:
 

|                        |                  |
|------------------------|------------------|
| New Years' Day         | Labor Day        |
| Martin Luther King Day | Columbus Day     |
| Presidents' Day        | Veterans' Day    |
| Memorial Day           | Thanksgiving Day |
| Independence Day       | Christmas Day    |

#### **V. UNSCHEDULED MAINTENANCE (Repair Service):**

- A. Contractor shall maintain the equipment in accordance with manufacturer's guidance with an onsite response time within 24 hours for repairs (next business day). Contractor shall make reasonable efforts for FSE to respond by telephone within one (1) hour after notification of a malfunction. The CO or COR has the authority to approve/request a service call from the Contractor.
- B. Coverage includes on-site support, service parts, software, and labor.
- C. Contractor will provide telephone support per Section C, IV, Hours of Coverage.
- D. When the Contractor leaves on-site location where maintenance services are being performed, the site shall be left in a clean, neat, and orderly condition ensuring the hospital/clinic staff and patients are not subjected to any safety hazards, including but not limited to expose wiring, open circuit panels, or tripping hazards.

- E. The COR will be informed personally or in writing of the equipment status prior to the Contractor leaving the work site.
- F. The Contractor is not responsible for the maintenance of equipment listed when damage resulted from act of God or when services from other than the Contractor's personnel have been performed. The Contractor is not responsible for the maintenance of equipment listed when damage results from Government neglect, misuse, abuse, unauthorized attachments, or alterations to factory settings of the unit.

## **VI. SCHEDULED MAINTENANCE:**

- A. The Contractor shall perform PM Services to ensure that equipment listed in the schedule performs in accordance with Section C, III, Conformance Standards. Such maintenance will be performed at mutually agreed times during PM Coverage Hours. All exceptions to the PM schedule shall be arranged and approved in advance with the COR.
- B. The Contractor shall provide and utilize procedures and checklists with worksheet originals indicating work performed and actual values obtained (as applicable). Any charges for parts, services, manuals, tools, or software required to successfully complete scheduled PM are included within this contract, unless specifically stated in writing.
- C. The contractor shall provide written description of Preventive Maintenance Inspections (PMI). This description shall include an itemized list of the procedures performed. PM services shall include, but need not be limited to, the following:
  - 1. Cleaning of equipment.
  - 2. Calibrating and lubricating the equipment.
  - 3. Performing remedial maintenance of non-emergent nature.
  - 4. Testing and replacing faulty and worn parts and/or parts likely to become faulty, fail or become worn.
  - 5. Inspecting and replacing where indicated, electrical wiring and cables for wear and fraying.
  - 6. Inspecting and replacing, where indicated, all mechanical components.
  - 7. Returning the equipment to the operating condition.
  - 8. Providing documentation of services performed.

## **VII. PARTS:**

- A. The Contractor has ready access, no more than three (3) business days, to all parts, including unique and/or high mortality replacement parts. The contract shall include all parts except, if applicable, those parts specifically listed as being excluded. The contractor shall use new or rebuilt parts which meet or exceed OEM standards for equivalent quality and reliability as a new part. Used parts or those removed from another system shall not be installed without specific approval by the CO or the COR.
- B. The contractor shall not modify the system to facilitate replacement parts that are not identical to the part being replaced unless such modification was developed, approved and released by the OEM.

- C. The following items are excluded from coverage: user-replaceable expendable parts/supplies and parts replaced for cosmetic reasons. The Contractor shall also list any additional excluded parts under the service contract.
- D. Any hardware, such as a hard drive, which contained patient information, must be sanitized in accordance with National Security Agency standards by WTVAHCS staff prior to being removed from the WTVAHCS.

#### **VIII. SERVICE MANUALS/TOOLS/EQUIPMENT:**

- A. The WTVAHCS shall not provide tools, (test) equipment, service manuals, or service diagnostic software to the contractor. Contractor shall obtain, have on file, and make available to its FSE all operational and technical documentation (such as operational and service manuals, schematics, and parts list) which are necessary to meet the performance requirements of this contract.
- B. Contractor shall provide the COR two (2) copies of all documentation that pertains to any hardware, software, or firmware upgrade or repair.

#### **IX. DOCUMENTATION/REPORTS:**

The documentation shall include detailed descriptions of the maintenance procedures performed, including replaced parts. In addition, each ESR must, at a minimum, document the following data legibly and in complete detail:

- A. Name of contractor and contract number.
- B. Name of FSE who performed services.
- C. Contractor service ESR number/log number.
- D. Description of problem reported by COR.
- E. Identification of equipment serviced.
- F. Itemized description of service performed, with parts and part numbers.
- G. Itemized costs of any approved billable parts and services, if applicable.

#### **X. REPORTING REQUIREMENTS:**

The Contractor shall report his arrival in person or by telephone to Biomedical Engineering. When the service is completed, the FSE shall document services rendered on a legible ESR(s). The FSE shall check out with Biomedical Engineering and submit the ESR(s) to the COR. If the COR is unavailable, a copy of the ESR will be sent to the COR after the work for review.

##### **Contact Information:**

WTVAHCS

Biomedical Contact Person(s): Chief Biomedical Engineering or designee.

Location (Building/Room Number): Building 1 Rooms

Telephone Number & Extension(s): 432-263-7361 X5056

#### **XI. SECURITY AND PRIVACY:**

## 1. GENERAL

Contractors, contractor personnel, subcontractors, and subcontractor personnel shall be subject to the same Federal laws, regulations, standards, and VA Directives and Handbooks as VA and VA personnel regarding information and information system security.

## 2. ACCESS TO VA INFORMATION AND VA INFORMATION SYSTEMS

a. A contractor/subcontractor shall request logical (technical) or physical access to VA information and VA information systems for their employees, subcontractors, and affiliates only to the extent necessary to perform the services specified in the contract, agreement, or task order.

b. All contractors, subcontractors, and third-party servicers and associates working with VA information are subject to the same investigative requirements as those of VA appointees or employees who have access to the same types of information. The level and process of background security investigations for contractors must be in accordance with VA Directive and Handbook 0710, *Personnel Suitability and Security Program*. The Office for Operations, Security, and Preparedness is responsible for these policies and procedures.

c. Contract personnel who require access to national security programs must have a valid security clearance. National Industrial Security Program (NISP) was established by Executive Order 12829 to ensure that cleared U.S. defense industry contract personnel safeguard the classified information in their possession while performing work on contracts, programs, bids, or research and development efforts. The Department of Veterans Affairs does not have a Memorandum of Agreement with Defense Security Service (DSS). Verification of a Security Clearance must be processed through the Special Security Officer located in the Planning and National Security Service within the Office of Operations, Security, and Preparedness.

d. Custom software development and outsourced operations must be located in the U.S. to the maximum extent practical. If such services are proposed to be performed abroad and are not disallowed by other VA policy or mandates, the contractor/subcontractor must state where all non-U.S. services are provided and detail a security plan, deemed to be acceptable by VA, specifically to address mitigation of the resulting problems of communication, control, data protection, and so forth. Location within the U.S. may be an evaluation factor.

e. The contractor or subcontractor must notify the Contracting Officer immediately when an employee working on a VA system or with access to VA information is reassigned or leaves the contractor or subcontractor's employ. The Contracting Officer must also be notified immediately by the contractor or subcontractor prior to an unfriendly termination.

### 3. VA INFORMATION CUSTODIAL LANGUAGE

a. Information made available to the contractor or subcontractor by VA for the performance or administration of this contract or information developed by the contractor/subcontractor in performance or administration of the contract shall be used only for those purposes and shall not be used in any other way without the prior written agreement of the VA. This clause expressly limits the contractor/subcontractor's rights to use data as described in Rights in Data - General, FAR 52.227-14(d) (1).

b. VA information should not be co-mingled, if possible, with any other data on the contractors/subcontractor's information systems or media storage systems in order to ensure VA requirements related to data protection and media sanitization can be met. If co-mingling must be allowed to meet the requirements of the business need, the contractor must ensure that VA's information is returned to the VA or destroyed in accordance with VA's sanitization requirements. VA reserves the right to conduct on site inspections of contractor and subcontractor IT resources to ensure data security controls, separation of data and job duties, and destruction/media sanitization procedures are in compliance with VA directive requirements.

c. Prior to termination or completion of this contract, contractor/subcontractor must not destroy information received from VA, or gathered/created by the contractor in the course of performing this contract without prior written approval by the VA. Any data destruction done on behalf of VA by a contractor/subcontractor must be done in accordance with National Archives and Records Administration (NARA) requirements as outlined in VA Directive 6300, *Records and Information Management* and its Handbook 6300.1 *Records Management Procedures*, applicable VA Records Control Schedules, and VA Handbook 6500.1, *Electronic Media Sanitization*. Self-certification by the contractor that the data destruction requirements above have been met must be sent to the VA Contracting Officer within 30 days of termination of the contract.

d. The contractor/subcontractor must receive, gather, store, back up, maintain, use, disclose and dispose of VA information only in compliance with the terms of the contract and applicable Federal and VA information confidentiality and security laws, regulations and policies. If Federal or VA information confidentiality and security laws, regulations and policies become applicable to the VA information or information systems after execution of the contract, or if NIST issues or updates applicable FIPS or Special Publications (SP) after execution of this contract, the parties agree to negotiate in good faith to implement the information confidentiality and security laws, regulations and policies in this contract.

e. The contractor/subcontractor shall not make copies of VA information except as authorized and necessary to perform the terms of the agreement or



to preserve electronic information stored on contractor/subcontractor electronic storage media for restoration in case any electronic equipment or data used by the contractor/subcontractor needs to be restored to an operating state. If copies are made for restoration purposes, after the restoration is complete, the copies must be appropriately destroyed.

f. If VA determines that the contractor has violated any of the information confidentiality, privacy, and security provisions of the contract, it shall be sufficient grounds for VA to withhold payment to the contractor or third party or terminate the contract for default or terminate for cause under Federal Acquisition Regulation (FAR) part 12.

g. If a VHA contract is terminated for cause, the associated BAA must also be terminated and appropriate actions taken in accordance with VHA Handbook 1600.01, *Business Associate Agreements*. Absent an agreement to use or disclose protected health information, there is no business associate relationship.

h. The contractor/subcontractor must store, transport, or transmit VA sensitive information in an encrypted form, using VA-approved encryption tools that are, at a minimum, FIPS 140-2 validated.

i. The contractor/subcontractor's firewall and Web services security controls, if applicable, shall meet or exceed VA's minimum requirements. VA Configuration Guidelines are available upon request.

j. Except for uses and disclosures of VA information authorized by this contract for performance of the contract, the contractor/subcontractor may use and disclose VA information only in two other situations: (i) in response to a qualifying order of a court of competent jurisdiction, or (ii) with VA's prior written approval. The contractor/subcontractor must refer all requests for, demands for production of, or inquiries about, VA information and information systems to the VA contracting officer for response.

k. Notwithstanding the provision above, the contractor/subcontractor shall not release VA records protected by Title 38 U.S.C. 5705, confidentiality of medical quality assurance records and/or Title 38 U.S.C. 7332, confidentiality of certain health records pertaining to drug addiction, sickle cell anemia, alcoholism or alcohol abuse, or infection with human immunodeficiency virus. If the contractor/subcontractor is in receipt of a court order or other requests for the above mentioned information, that contractor/subcontractor shall immediately refer such court orders or other requests to the VA contracting officer for response.

l. For service that involves the storage, generating, transmitting, or exchanging of VA sensitive information but does not require C&A or an MOU-ISA for system interconnection, the contractor/subcontractor must complete a Contractor Security Control Assessment (CSCA) on a yearly basis and provide it to the COR.

#### **4. SECURITY INCIDENT INVESTIGATION**

a. The term “security incident” means an event that has, or could have, resulted in unauthorized access to, loss or damage to VA assets, or sensitive information, or an action that breaches VA security procedures. The contractor/subcontractor shall immediately notify the COR and simultaneously, the designated ISO and Privacy Officer for the contract of any known or suspected security/privacy incidents, or any unauthorized disclosure of sensitive information, including that contained in system(s) to which the contractor/subcontractor has access.

b. To the extent known by the contractor/subcontractor, the contractor/subcontractor’s notice to VA shall identify the information involved, the circumstances surrounding the incident (including to whom, how, when, and where the VA information or assets were placed at risk or compromised), and any other information that the contractor/subcontractor considers relevant.

c. With respect to unsecured protected health information, the business associate is deemed to have discovered a data breach when the business associate knew or should have known of a breach of such information. Upon discovery, the business associate must notify the covered entity of the breach. Notifications need to be made in accordance with the executed business associate agreement.

d. In instances of theft or break-in or other criminal activity, the contractor/subcontractor must concurrently report the incident to the appropriate law enforcement entity (or entities) of jurisdiction, including the VA OIG and Security and Law Enforcement. The contractor, its employees, and its subcontractors and their employees shall cooperate with VA and any law enforcement authority responsible for the investigation and prosecution of any possible criminal law violation(s) associated with any incident. The contractor/subcontractor shall cooperate with VA in any civil litigation to recover VA information, obtain monetary or other compensation from a third party for damages arising from any incident, or obtain injunctive relief against any third party arising from, or related to, the incident.

#### **5. LIQUIDATED DAMAGES FOR DATA BREACH**

a. Consistent with the requirements of 38 U.S.C. §5725, a contract may require access to sensitive personal information. If so, the contractor is liable to VA for liquidated damages in the event of a data breach or privacy incident involving any SPI the contractor/subcontractor processes or maintains under this contract.

b. The contractor/subcontractor shall provide notice to VA of a “security incident” as set forth in the Security Incident Investigation section above. Upon such notification, VA must secure from a non-Department entity or the VA Office of Inspector General an independent risk analysis of the data breach to

determine the level of risk associated with the data breach for the potential misuse of any sensitive personal information involved in the data breach. The term 'data breach' means the loss, theft, or other unauthorized access, or any access other than that incidental to the scope of employment, to data containing sensitive personal information, in electronic or printed form, that results in the potential compromise of the confidentiality or integrity of the data. Contractor shall fully cooperate with the entity performing the risk analysis. Failure to cooperate may be deemed a material breach and grounds for contract termination.

c. Each risk analysis shall address all relevant information concerning the data breach, including the following:

- (1) Nature of the event (loss, theft, unauthorized access);
- (2) Description of the event, including:
  - (a) date of occurrence;
  - (b) data elements involved, including any PII, such as full name, social security number, date of birth, home address, account number, disability code;
- (3) Number of individuals affected or potentially affected;
- (4) Names of individuals or groups affected or potentially affected;
- (5) Ease of logical data access to the lost, stolen or improperly accessed data in light of the degree of protection for the data, e.g., unencrypted, plain text;
- (6) Amount of time the data has been out of VA control;
- (7) The likelihood that the sensitive personal information will or has been compromised (made accessible to and usable by unauthorized persons);
- (8) Known misuses of data containing sensitive personal information, if any;
- (9) Assessment of the potential harm to the affected individuals;
- (10) Data breach analysis as outlined in 6500.2 Handbook, *Management of Security and Privacy Incidents*, as appropriate; and
- (11) Whether credit protection services may assist record subjects in avoiding or mitigating the results of identity theft based on the sensitive personal information that may have been compromised.

d. Based on the determinations of the independent risk analysis, the contractor shall be responsible for paying to the VA liquidated damages in

the amount of **\$37.50** per affected individual to cover the cost of providing credit protection services to affected individuals consisting of the following:

Notification;

- (1) One year of credit monitoring services consisting of automatic daily monitoring of at least 3 relevant credit bureau reports;
- (2) Data breach analysis;
- (3) Fraud resolution services, including writing dispute letters, initiating fraud alerts and credit freezes, to assist affected individuals to bring matters to resolution;
- (4) One year of identity theft insurance with \$20,000.00 coverage at \$0 deductible; and
- (5) Necessary legal expenses the subjects may incur to repair falsified or damaged credit records, histories, or financial affairs.

## **NARA**

1. Contractor shall comply with all applicable records management laws and regulations, as well as National Archives and Records Administration (NARA) records policies, including but not limited to the Federal Records Act (44 U.S.C. chs. 21, 29, 31, 33), NARA regulations at 36 CFR Chapter XII Subchapter B, and those policies associated with the safeguarding of records covered by the Privacy Act of 1974 (5 U.S.C. 552a). These policies include the preservation of all records, regardless of form or characteristics, mode of transmission, or state of completion.
2. In accordance with 36 CFR 1222.32, all data created for Government use and delivered to, or falling under the legal control of, the Government are Federal records subject to the provisions of 44 U.S.C. chapters 21, 29, 31, and 33, the Freedom of Information Act (FOIA) (5 U.S.C. 552), as amended, and the Privacy Act of 1974 (5 U.S.C. 552a), as amended and must be managed and scheduled for disposition only as permitted by statute or regulation.
3. In accordance with 36 CFR 1222.32, Contractor shall maintain all records created for Government use or created in the course of performing the contract and/or delivered to, or under the legal control of the Government and must be managed in accordance with Federal law. Electronic records and associated metadata must be accompanied by sufficient technical documentation to permit understanding and use of the records and data.
4. West Texas VA health Care System and its contractors are responsible for preventing the alienation or unauthorized destruction of records, including all forms of mutilation. Records may not be removed from the legal custody of WTVAHCS or destroyed except for in accordance with the provisions of the agency records schedules and with the written concurrence of the Head of the Contracting Activity. Willful and unlawful destruction, damage or alienation of Federal records is subject to the fines and penalties imposed by 18 U.S.C. 2701. In the event of any unlawful or accidental removal,

defacing, alteration, or destruction of records, Contractor must report to WTVAHCS. The agency must report promptly to NARA in accordance with 36 CFR 1230.

5. The Contractor shall immediately notify the appropriate Contracting Officer upon discovery of any inadvertent or unauthorized disclosures of information, data, documentary materials, records or equipment. Disclosure of non-public information is limited to authorized personnel with a need-to-know as described in the [contract vehicle]. The Contractor shall ensure that the appropriate personnel, administrative, technical, and physical safeguards are established to ensure the security and confidentiality of this information, data, documentary material, records and/or equipment is properly protected. The Contractor shall not remove material from Government facilities or systems, or facilities or systems operated or maintained on the Government's behalf, without the express written permission of the Head of the Contracting Activity. When information, data, documentary material, records and/or equipment is no longer required, it shall be returned to WTVAHCS control, or the Contractor must hold it until otherwise directed. Items returned to the Government shall be hand carried, mailed, emailed, or securely electronically transmitted to the Contracting Officer or address prescribed in the [contract vehicle]. Destruction of records is EXPRESSLY PROHIBITED unless in accordance with Paragraph (4).
6. The Contractor is required to obtain the Contracting Officer's approval prior to engaging in any contractual relationship (sub-contractor) in support of this contract requiring the disclosure of information, documentary material and/or records generated under, or relating to, contracts. The Contractor (and any sub-contractor) is required to abide by Government and WTVAHCS guidance for protecting sensitive, proprietary information, classified, and controlled unclassified information.
7. The Contractor shall only use Government IT equipment for purposes specifically tied to or authorized by the contract and in accordance with WTVAHCS policy.
8. The Contractor shall not create or maintain any records containing any non-public WTVAHCS information that are not specifically tied to or authorized by the contract.
9. The Contractor shall not retain, use, sell, or disseminate copies of any deliverable that contains information covered by the Privacy Act of 1974 or that which is generally protected from public disclosure by an exemption to the Freedom of Information Act.
10. The WTVAHCS owns the rights to all data and records produced as part of this contract. All deliverables under the contract are the property of the U.S. Government for which WTVAHCS shall have unlimited rights to use, dispose of, or disclose such data contained therein as it determines to be in the public interest. Any Contractor rights in the data or deliverables must be identified as required by FAR 52.227-11 through FAR 52.227-20.
11. Training. All Contractor employees assigned to this contract who create, work with, or otherwise handle records are required to take WTVAHCS provided records management training. The Contractor is responsible for confirming training has been completed according to agency policies, including initial training and any annual or refresher training.

## 12. References:

VHA Directive 6300, Records Management

## **6. TRAINING**

a. All contractor employees and subcontractor employees requiring access to VA information and VA information systems shall complete the following before being granted access to VA information and its systems:

(1) Sign and acknowledge (either manually or electronically) understanding of and responsibilities for compliance with the *Contractor Rules of Behavior*, Appendix E relating to access to VA information and information systems;

(2) Successfully complete the *VA Cyber Security Awareness and Rules of Behavior* training and annually complete required security training;

(3) Successfully complete the appropriate VA privacy training and annually complete required privacy training; and

(4) Successfully complete any additional cyber security or privacy training, as required for VA personnel with equivalent information system access

b. The contractor shall provide to the contracting officer and/or the COR a copy of the training certificates and certification of signing the Contractor Rules of Behavior for each applicable employee within 1 week of the initiation of the contract and annually thereafter, as required.

c. Failure to complete the mandatory annual training and sign the Rules of Behavior annually, within the timeframe required, is grounds for suspension or termination of all physical or electronic access privileges and removal from work on the contract until such time as the training and documents are complete.

## **XII. EQUIPMENT LIST:**

- a. CASE System V6.7 - Serial Number: STE23140014SA - Assurepoint Standard
- b. MUSE NX – Serial Number: SSR21516289TA - Assurepoint Muse Performance
- c. Cardioday Holter System – Serial Number: 9500227- Assurepoint Select